Fragment: Privileyiuin exemplionis monacar uni S. Be-

Martinus episcopus servus servorum Del, vene- rabilibus fratribus archiepiscopis, episcopis, ac dilectis filiis abbatibas, prioribus, decanis, archidiacoDis, praepositis, et aliis Ecclesia- rum praelatis, ad qnos praesentes literae pervenerint, salutem et apostoiicam bene- dictionem. · Latin

XII.

Privileyiuin exemplionis monacar uni S. Be- nedicli Ordinis Cisterciensis a sohuione

decimarum.

SUMMAIUUM

ProcEiiiium. — 1, 2. Exeniptio (de qua in ru- brica). — 3. Obstantiuni derogatio.

Martinus episcopus servus servorum Del, vene- rabilibus fratribus archiepiscopis, episcopis,

ac dilectis filiis abbatibas, prioribus, decanis,

archidiacoDis, praepositis, et aliis Ecclesia- rum praelatis, ad qnos praesentes literae

pervenerint, salutem et apostoiicam bene- dictionem.

Militanti Ecclesiae, licei immeriti, dis- ponente Domino, praesidenles, circa cu- ram Ecclesiaruni ne monasleriorum om- nium solerlia reddiiiiiir indefessa soliciti, ut, iuxta debiliiin pastora lis ofticiij eoruni occurramus dispendiis, el profeclibus, di- vina cooperante clementia, salubriter in- tendamus.

Ali. C. l'ii'l 708 BIU-AUIUM UOMANUM

g 1. Culli abbales Cislercieiisis Oidiiiis ad coiiimonitioiioin eie. (t).

Exompiio (de qii» 111 rubricu).

^ 2. Not. l'iiiiii |MO(iut;aUoiieiii Oidiiiis el li'iiiM|uillilal('in |ii';a'iii('loiiiiii abbiiluiii, ||,,|^,|.„„„^ iilihalissarmii ci coiiveiiluiim dicli Ordinis , iiileiilis dcbidciiis aHeclaiiles , luaclalis fi |)luiiliiis aiiis l'avoiibus pio- sequi volenles , Cdrimi supplicalioiiibus incbiiali, de speciali L;ialia neciioii ex coii- sideialioiie iioiiiiiidlonmi leguin el |iiiii- (■i|)un), i|ui noliis siias destinaiuiil lileias, iiniviTsilali vebtrac jicr ajioslolica scrijila iiiandanius, (|iiaU'iius dicliim altbalem et omiies el siiigiilos abliales, prioies el ab- Italissas el omnia el singula monasleiia el siiit^idaies [lersonas dieli Ordiiiis prae- seiilia el fiiluia, ubicuinqiie pio leiiipoie exisleiilia, a piaet.lalioue deciiiiaiiim taiii de possessionibiis babilisanlc el posi cori- cibuni niemoraUini, i|uaiii de caeleio ba- liendis, el lam de novabbus sive aule sive posi coiiciliimi buiiisniodi acquisilis el acqiiirendis, ipiae piO|iriis sumplibus cx- coliinl seii excoleiil, qiiani abas quonio- dociimqiie vel quablerciimqiie excolanliir, el eliam de ibis possessionibus, de qiiibus aliqiiis hacteiiiis percepii, necnon de boilis, virgullis el piscalionibiis snis el de suoriim animabnm miliimenlis , singidi vestrum omnino servelis immiines. Conlradiclores per censiiram ecclesiaslicam, appellallone poslposila, compesceiido, invocato ad boc, si opus fuerii, anxilio bracbii saecularis.

Obsl.iii rogatio

^ 5. Qnibuscuniqiie conslilulionibus , ordinationibus aposlobcis ac abis in con- Irarium edilis, eliam iuramenlo, conlìr- malione aposlobca vel quacumque firmi- lale aba roboraiis, non obslanlibiis. Nulb ergo eie.

Dalum Romae apiid S. Mariani Maio- rem, nono kalendas oclobris, ponlificaliis nostri anno seplimo.

Dal. die 23 seplenibris 1424, poni, anno vii.

(1) Omiltitur haer, narrativa, quia eadem est in Constit. i.xxiii Honorii III, Ctitn abbales. Ioni. Ili, pag. 408.

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